About Kamal Nath, Suri says, ‘When the crowd surged forward at one point, Kamal Nath had only to gesture lightly, and they held back … What was the relation between Kamal Nath and that crowd that he had only to raise his hand towards it and it held back? … All that time he was there, the crowd had stayed there, violently and aggressively.’ Further, Suri wrote, ‘Kamal Nath had come down from Teen Murti Bhavan, the crowd too had come from there, as (the) Kusum Lata Mittal report into policing failure categorically declares.’ Kamal Nath later said he was not leading the mob in any attack, that he had, on the contrary, only tried to control the situation. [6]

When the inquiry commission headed by serving Supreme Court judge, Justice Ranganath Misra, was set up in 1985, Sanjay Suri decided to submit his evidence through affidavits as to what he had seen during that period, including what he saw on 1 November at Gurudwara Rakab Ganj. After his evidence was recorded, he was cross-examined by two lawyers. The first asked him if he could produce an eyewitness who could testify that he had been at those places he had reported from.

When Suri mentioned that his evidence was based on his personal observation, the lawyer told him, ‘ Don’t get excited. You must never get excited’; upon which Justice Misra nodded in agreement and said the witness should not get excited when presenting evidence. Suri says the second lawyer, who spoke kindly, asked him if he could produce a log book from the *Indian Express* that would ‘list exactly where I was in the city and at what time and could such a book confirm that I was indeed at those places I had my eyewitness account from’. [7]

I don’t have to comment on this and would like to leave to the readers’ best judgement as to how the eyewitness evidence of reliable witnesses was treated by a commission headed by a serving Supreme Court judge.

Justice Misra later retired as Chief Justice of India. After retirement he was made chairman of the National Human Rights Commission and was finally elected as a member of the Rajya Sabha (1998–2004) on a Congress ticket.